

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

18. NADIA THEODORE V. GABE LOPEZ

26FL0142

Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC) on April 14, 2026. It was set to be heard on June 25, 2026. Parties agreed to continue the matter to August 20, 2026. Petitioner was personally served on April 25, 2026.

Respondent filed a Request for Order (RFO) requesting modification of the child custody and parenting plan orders on April 16, 2026. It too was set for a hearing on June 25th and continued by agreement of the parties to August 20th. Petitioner was personally served on April 25, 2026.

Petitioner filed an RFO on May 1, 2026. Petitioner filed an OSC the same day. Respondent was personally served on May 7, 2026.

Petitioner filed an ex parte application for emergency custody orders on May 5, 2026. On May 8, 2026, the court granted the ex parte request directing the minor to be immediately returned to the state of California and granting Petitioner temporary sole physical custody. The court ordered Respondent to have professionally supervised parenting time two times per week for two hours each. On May 8th Petitioner filed an RFO seeking the same orders requested in the ex parte application. The parties were referred to Child Custody Recommending Counseling (CCRC) with an emergency set appointment on May 26, 2026, and a review hearing on June 25, 2026. There is no Proof of Service showing Respondent was properly served with the ex parte orders or the referral to CCRC.

On May 21, 2026, parties agreed to continue all matters to August 20th and reschedule the CCRC appointment to July 9th.

Only Petitioner appeared at CCRC on July 9, 2026. A single parent report was issued on July 9th and mailed to the parties on the same day.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #18: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.